

ALL IN TOURNAMENT TRAIL LLC

PARTICIPANT LIABILITY WAIVER AND ASSUMPTION OF RISK

Version 1.1

Tournament: _____ Date: _____

Registration #: _____

The complete waiver and Official Tournament Rules must be read before signing. This paper form records the participants' signed acknowledgment for the tournament registration file.

PARTICIPANT NAMES

Angler 1 Printed Name: _____

Angler 2 Printed Name: _____

Participant Liability Waiver and Assumption of Risk

1. Agreement to Participate

Participation in an All-In Tournament Trail (AITT) tournament, official practice, registration activity, launch, weigh-in, award presentation, or closely related event activity is voluntary.

Acceptance of this waiver is a condition of participation. The participant confirms that the full waiver was available to read before registration and that the participant had an opportunity to review it and ask questions.

The participant may decline this waiver by choosing not to register or participate. Visiting the AITT website or reviewing this waiver does not constitute acceptance.

To the extent legally appropriate, this waiver applies to tournament-related activities occurring before, during, and immediately after an AITT event.

2. Acknowledgment of Inherent Risks

Competitive fishing, boating, launching, trailering, and related tournament activities involve serious risks that cannot be completely eliminated. These risks include, but are not limited to:

- Boating accidents; collisions with boats, docks, structures, debris, or submerged objects; capsizing; falling overboard; and drowning
- Slips, trips, falls, burns, cuts, puncture wounds, and injuries involving hooks, lures, rods, knives, or other fishing and boating equipment
- Severe weather, lightning, high winds, waves, rough water, rapidly changing conditions, extreme heat, cold exposure, and limited visibility
- Wildlife encounters, underwater hazards, remote locations, and delays in emergency response
- Fuel-related hazards, fire, mechanical or electrical failure, engine failure, battery failure, steering failure, and communications failure
- Navigation errors, route-selection errors, unsafe speeds, misjudged water depth, and incorrect decisions about whether to launch or continue
- Actions, omissions, negligence, or unsafe decisions of other participants, recreational boaters, spectators, property owners, or members of the public
- Theft, loss, or damage involving boats, motors, vehicles, trailers, electronics, fishing equipment, and personal property
- Serious bodily injury, permanent disability, and death

This list is illustrative, not exhaustive. Known and unknown risks may arise from the location, weather, equipment, participant conduct, third-party conduct, or the nature of tournament participation.

3. Voluntary Assumption of Risk

The participant understands these risks, voluntarily chooses to participate, and knowingly accepts the inherent and reasonably foreseeable risks of competitive fishing and boating to the fullest extent permitted by applicable law. Risks may remain even when reasonable safety precautions are followed.

The participant accepts responsibility for risks arising from the participant's own actions, omissions, judgment, errors, negligence, and unsafe decisions. The participant also accepts the possibility that another participant or third party may act negligently or make an unsafe decision.

Tournament Officials cannot observe, supervise, direct, or control every participant or every situation occurring on the water. Each participant is responsible for decisions made before, during, and immediately after competition, including decisions involving:

- Whether to launch, continue fishing, suspend participation, withdraw, or seek shelter
- Weather avoidance, water conditions, navigation, route selection, vessel speed, and distance from safe harbor
- Boat and equipment condition, fuel planning, communications, emergency response, and personal safety

4. Participant Responsibility and Independent Judgment

Each participant is responsible for:

- Personal conduct and on-the-water decisions
- Safe and lawful vessel operation and maintaining control of the vessel
- Determining whether conditions are safe for the participant's boat, equipment, experience, health, and abilities
- Selecting safe routes and speeds and avoiding known or reasonably apparent hazards
- Complying with federal, state, and local law, boating and fishing regulations, and site requirements
- Confirming that required safety equipment is present, accessible, and functional
- Deciding whether to launch, continue, suspend, seek shelter, or withdraw from competition
- The conduct of a teammate, passenger, or permitted occupant to the extent allowed by law

No tournament schedule, check-in deadline, prize opportunity, rule, announcement, instruction, or competitive consideration requires a participant to operate a vessel unsafely or continue participating in unsafe conditions. Participants must place safety ahead of competition.

AITT does not make an individualized judgment that a particular participant, vessel, route, speed, location, or weather condition is safe for that participant. General tournament information does not replace the participant's independent judgment.

5. Boat Operator and Vessel Responsibility

The boat operator is responsible for ensuring that the vessel is legally registered where required, seaworthy, properly maintained, legally operated, and suitable for reasonably expected conditions.

Before and during participation, the operator is responsible for the condition and sufficiency of:

- Hull, engine, steering, throttle, electrical systems, and batteries
- Navigation lights, fire extinguishers, throwable flotation devices, and personal flotation devices
- Engine emergency-stop kill-switch systems
- Fuel, communications equipment, and other required safety equipment
- Insurance where required by law or applicable agreement

Life jackets and emergency kill switches must be used in accordance with applicable law and the Official Tournament Rules.

Each boat operator remains responsible for safe vessel operation regardless of tournament standings, weather, time constraints, check-in deadlines, or fishing conditions. An AITT inspection, boat check, rule-enforcement action, or failure to identify a defect does not guarantee vessel safety or transfer responsibility for the vessel to AITT.

6. Weather and Water Conditions

Weather and water conditions can change rapidly. Forecasts, observations, and provider data may be delayed, incomplete, or inaccurate. Estimated Safe Light is a planning estimate and does not guarantee safe visibility, navigability, water, weather, or operating conditions.

AITT may delay, modify, shorten, stop, postpone, cancel, or reschedule an event for safety reasons. AITT cannot continuously monitor every location, participant, route, or developing condition. The absence of an official delay, warning, or cancellation does not mean conditions are safe for every participant or vessel.

Each participant must independently evaluate current conditions and make conservative safety decisions based on the participant's vessel, equipment, experience, abilities, and location. Launch and continuation decisions remain with each participant.

7. Medical Fitness and Personal Condition

The participant believes they are physically and mentally capable of participating. The participant is responsible for considering any medical condition, medication, impairment, fatigue, dehydration, heat illness, cold exposure, or other limitation and for obtaining medical advice when appropriate.

The participant will not participate while impaired by alcohol, illegal drugs, or any medication or substance that makes participation unsafe. This waiver does not require disclosure of private medical information not otherwise required by AITT's registration or tournament process.

The participant remains responsible for personal medical expenses arising from participation, except where responsibility cannot legally be assigned or waived.

8. Emergency Medical Treatment

If the participant is unable to provide consent during an emergency, the participant authorizes Tournament Officials or other persons at the scene to request reasonable emergency assistance, transportation, and medical treatment.

AITT does not guarantee the availability, timing, adequacy, or outcome of an emergency response. The participant remains financially responsible for medical transportation, treatment, hospitalization, and related expenses to the extent permitted by law.

This authorization does not require any person to provide care beyond their training and does not create a duty beyond what applicable law requires.

9. Release of Liability

For this section, the Released Parties are All In Tournament Trail LLC and its owners, officers, directors, Tournament Directors, employees, contractors, volunteers, scorekeepers, officials, sponsors, partners, host facilities, property owners, launch facilities, affiliated organizations, agents, representatives, successors, and assigns.

To the fullest extent permitted by applicable law, the participant releases the Released Parties from claims arising from participation in an AITT event and associated with inherent risks; boating accidents; collisions; falls; drowning; weather; equipment failure; property damage; emergency response; the actions of participants or third parties; and the participant's own decisions, errors, omissions, negligence, unsafe choices, navigation, speed, route selection, failure to discontinue participation, failure to seek shelter, or failure to use appropriate safety equipment.

NOTICE REGARDING AITT'S OWN ORDINARY NEGLIGENCE: TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, THIS RELEASE IS ALSO INTENDED TO INCLUDE CLAIMS ALLEGING THE ORDINARY NEGLIGENCE OF A RELEASED PARTY IN CONNECTION WITH AN AITT EVENT.

This release does not apply to gross negligence, reckless conduct, intentional misconduct, fraud, statutory rights that cannot legally be waived, or other legally non-waivable conduct to the extent applicable law prohibits such a release.

Nothing in this waiver is intended to waive any right, claim, protection, or remedy that cannot legally be waived under applicable law.

10. Indemnification and Responsibility for Participant Conduct

To the extent permitted by applicable law, the participant accepts responsibility for claims, losses, liabilities, or property damage caused by the participant's unlawful or reckless conduct, negligent vessel operation, violation of the Official Tournament Rules, damage to another person's property, or failure to comply with boating or fishing laws.

Any indemnification obligation is intended to be reasonable, legally permissible, and limited to loss caused by the participant's own conduct. It is not intended to create an unlimited obligation or cover conduct that cannot legally be shifted to the participant.

11. Property Loss and Damage

To the fullest extent permitted by applicable law, AITT is not responsible for theft, loss, or damage involving boats, motors, electronics, fishing equipment, vehicles, trailers, personal belongings, phones, cameras, cash, or other property used, carried, parked, stored, or left at an AITT activity.

Each participant is responsible for securing, maintaining, and insuring their own property. This provision does not excuse conduct or waive a right that cannot legally be waived.

12. Conduct of Other Participants and Third Parties

AITT cannot guarantee the conduct, judgment, skill, equipment, or competence of another participant. AITT also cannot control recreational boaters, spectators, property owners, launch users, or other third parties.

To the extent allowed by law, the participant accepts risks created by the actions, errors, omissions, negligence, or unsafe decisions of others. Participants must remain alert and take reasonable action to avoid foreseeable hazards created by other people or vessels.

13. Compliance with Laws and Tournament Rules

The participant agrees to comply with:

- The Official Tournament Rules
- Federal, state, and local law
- Boating and fishing regulations
- Site, marina, property, and launch-facility rules
- Lawful instructions from public authorities and Tournament Officials

A violation may result in a penalty, loss of weight, disqualification, suspension, removal from an event, loss of eligibility, or referral to the appropriate authority, consistent with the Official Tournament Rules and applicable law. This waiver does not create a specific tournament penalty not otherwise established by the rules.

14. No Guarantee of Safety

AITT promotes safety but cannot guarantee participant safety. The presence of Tournament Officials does not create continuous supervision or control over participants on the water.

Safety communications, rules, weather notices, forecasts, Estimated Safe Light, inspections, boat checks, event changes, and emergency assistance do not eliminate inherent risks or replace independent participant judgment. Each participant remains responsible for personal safety and conservative decision-making.

Nothing in this section permits AITT or any Released Party to disregard a safety obligation imposed by applicable law.

15. Photography, Video, and Media Release

The participant grants AITT reasonable permission to photograph, film, livestream, record, and identify the participant in connection with AITT activities. AITT may use the participant's name, image, likeness, voice, tournament results, catch, and event participation for:

- The AITT website and social media

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- Livestreams and event coverage
- Promotional materials and advertising
- Sponsor communications
- Historical archives and future AITT marketing

No additional compensation is required unless AITT and the participant agree otherwise in writing. These rights are limited to uses reasonably related to AITT activities and remain subject to applicable law.

If a minor participates, any media permission must be reviewed and accepted by a parent or legal guardian as required by law and these Official Tournament Rules.

16. Minors

Participants who are sixteen (16) years of age or older may compete as solo anglers, subject to all registration, waiver, safety, licensing, and eligibility requirements.

A participant under eighteen (18) years of age must have a parent or legal guardian complete and sign all required registration acknowledgments, liability waivers, and participation approvals before the participant may compete.

The parent or legal guardian does not need to be Angler 1 or Angler 2. A minor may fish with another adult, including an adult teammate, but that adult may not replace the parent or legal guardian's signature unless they are the minor's legal guardian. A minor may not compete unless the parent or legal guardian has provided that signed consent.

A participant under sixteen (16) years of age may not compete as a solo angler and must compete with a parent, legal guardian, or another adult approved by the parent or legal guardian. The accompanying adult is responsible for the minor participant's supervision, safety, compliance with tournament rules, and lawful operation of the boat. Stricter requirements imposed by applicable law control.

17. Electronic Acknowledgment and Signature

By checking the acknowledgment during online registration or signing this paper form, each participant confirms that they had access to and reviewed:

- The Official Tournament Rules
- This Participant Liability Waiver and Assumption of Risk
- The AITT Privacy Policy

Online acknowledgment requires an affirmative, unchecked-by-default action before payment.

Visiting a policy page, browsing the website, or beginning a form does not constitute agreement.

The online acknowledgment and handwritten signature are intended to record the participant's agreement where permitted by applicable law.

Payment-card information is processed by Square, a third-party payment provider. AITT does not store credit-card numbers, CVV codes, or other payment-card credentials.

18. Governing Law

This waiver is intended to be governed by the laws of the State of Texas, subject to any law that must apply regardless of this provision.

19. Severability

If a court or other authority determines that a provision is invalid or unenforceable, the remaining provisions should remain in effect to the fullest extent permitted by law.

Where legally permitted, an unenforceable provision may be limited or modified only to the minimum extent necessary to make it enforceable. Severability does not expand any provision beyond what applicable law allows.

20. Entire Agreement and No Oral Modification

This waiver, together with the Official Tournament Rules and applicable written registration terms, represents the participant's agreement concerning the subjects it covers.

A tournament-day conversation, informal statement, or verbal comment does not silently replace this written waiver. Any official waiver modification must be made by AITT through an authorized written update.

This section does not prevent Tournament Officials from issuing lawful emergency instructions, safety directions, schedule changes, or rules clarifications within their authority.

21. Participant Safety Acknowledgment

I understand that competitive fishing and boating involve risks that cannot be completely eliminated.

I acknowledge that I am responsible for my own safety, the safe operation of my vessel, and the decisions I make while participating in an All-In Tournament Trail event.

I understand that Tournament Officials cannot continuously supervise me or guarantee my safety while I am on the water.

I voluntarily accept the risks associated with participation, including risks arising from accidents, weather, equipment failures, the actions of others, and my own decisions, errors, omissions, or negligence, to the fullest extent permitted by applicable law.

I understand that I may withdraw from participation whenever I believe conditions are unsafe.

ACKNOWLEDGMENT AND SIGNATURES

By signing below, each participant confirms that they have read and agree to this full waiver and the Official Tournament Rules, had an opportunity to ask questions, and voluntarily choose to participate. If a participant is a minor, a parent or legal guardian must also sign below before participation.

ANGLER 1 SIGNATURE _____

DATE _____

ANGLER 2 SIGNATURE _____

DATE _____

PARENT / LEGAL GUARDIAN SIGNATURE _____

PRINTED NAME _____ DATE _____

AITT retains this signed form with the tournament registration records. This paper form does not replace the full Rules and waiver text made available to participants.